

SENATE BILL No. 272

DIGEST OF INTRODUCED BILL

Citations Affected: IC 8-1-40.2.

Synopsis: Competitive electric supply service. Provides that beginning July 1, 2027, an eligible customer of an incumbent electricity supplier may elect to receive: (1) electric supply service directly from a competitive electricity supplier; and (2) transmission and distribution service from the incumbent electricity supplier. Defines for these purposes an "eligible customer" as a new or existing nonresidential customer of the incumbent electricity supplier, or an aggregation of two or more such customers, whose aggregate electricity demand during the most recently concluded calendar year exceeded one megawatt. Defines for these purposes an "incumbent electricity supplier", with respect to an eligible customer, as an investor owned utility that is under the jurisdiction of the Indiana utility regulatory commission (IURC) and whose assigned service area includes the eligible customer. Requires the IURC to establish by rule the following: (1) A system for establishing and periodically adjusting a cap on an incumbent electricity supplier's eligible customers receiving electric supply service from a competitive electricity supplier. (2) A queue process by which eligible customers of an incumbent electricity supplier that elect to receive electric supply service from a competitive electricity supplier are authorized to begin receiving that service as the incumbent electricity supplier's cap allows. Specifies the methods by which the IURC must establish and adjust an incumbent electricity supplier's cap. Sets forth requirements for advance notice that an eligible customer must provide to an incumbent electricity supplier before: (1) receiving electric supply service from a competitive electricity supplier; or (2) resuming electric supply service under the incumbent electricity

(Continued next page)

Effective: Upon passage.

Donato

January 8, 2026, read first time and referred to Committee on Utilities.



supplier's applicable tariff upon discontinuing electric supply service from a competitive electricity supplier. Provides that on any customer bill issued by an incumbent electricity supplier after June 30, 2027, the incumbent electricity supplier must include a breakdown of the charges and fees that make up the total amount owed, including a description of the service or cost associated with each charge or fee. Sets forth certain charges and fees that must be delineated as specific line items on each customer bill. Requires the IURC to establish by rule requirements for an incumbent electricity supplier to provide to a competitive electricity supplier historical usage data for an eligible customer that seeks to receive electric supply service from the competitive electricity supplier. Sets forth certain metrics that the customer usage data must include. Requires the IURC to establish by rule a licensing process for competitive electricity suppliers that seek to provide electric supply service to eligible customers of incumbent electricity suppliers in Indiana. Sets forth certain requirements that a competitive electricity supplier must meet as a condition of receiving and maintaining a license. Provides that an incumbent electricity supplier that seeks to provide electric supply service outside its assigned service area must do so through a functionally separate, nonutility affiliate that is subject to the bill's licensing requirements. Requires the IURC to establish by rule a procedure by which a: (1) municipally owned utility; or (2) rural electric corporation; may elect to become subject to the bill's provisions so as to enable its eligible customers to receive electric supply service from a competitive electricity supplier. Provides that in any base rate case for an incumbent electricity supplier, the IURC shall: (1) ensure that electric supply service received by eligible customers from a competitive electricity supplier will not result in unreasonable cost shifting to other nonparticipating eligible customers or to other customer classes; and (2) consider the avoided generation and purchased power costs inuring to the benefit of the incumbent electricity supplier's ratepayers as a result of eligible customers receiving electric supply service from competitive electricity suppliers. Beginning in 2028, requires the IURC to include each year in its annual report specified information concerning the provision of electric supply service by competitive electricity suppliers to eligible customers of incumbent electricity suppliers. Requires the IURC to adopt rules to implement the bill's provisions.



Introduced

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 272

A BILL FOR AN ACT to amend the Indiana Code concerning utilities.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 8-1-40.2 IS ADDED TO THE INDIANA CODE
- 2 AS A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE
- 3 UPON PASSAGE]:
- 4 **Chapter 40.2. Competitive Electric Supply Service for**
- 5 **Nonresidential Customers**
- 6 **Sec. 1. As used in this chapter, "commission" refers to the**
- 7 **Indiana utility regulatory commission created by IC 8-1-1-2.**
- 8 **Sec. 2. (a) As used in this chapter, "competitive electricity**
- 9 **supplier" means a person that is licensed by the commission under**
- 10 **this chapter to provide competitive electric supply service at retail**
- 11 **to eligible customers.**
- 12 **(b) The term does not include a person that:**
- 13 **(1) owns or operates:**
- 14 **(A) a cogeneration facility (as defined in IC 8-1-2.4-2(c));**
- 15 **(B) a private generation project (as defined in**



IC 8-1-2.4-2(g)); or

(C) a generator or other device that is located on the person's premises;

for the purpose of generating electricity to meet or offset all or part of the person's need for electricity on or near the location of the facility, project, generator, or device; and

(2) does not otherwise provide electric supply service at retail.

Sec. 3. (a) As used in this chapter, "customer", with respect to an incumbent electricity supplier, means a metered electrical service point that is located in the incumbent electricity supplier's assigned service area under IC 8-1-2.3.

(b) As the context requires, the term includes a person of record who is:

(1) associated with a billing account established by the incumbent electricity supplier for the service point described in subsection (a); or

(2) otherwise associated with the service point described in subsection (a).

Sec. 4. (a) As used in this chapter, "electric supply service" means the generation or procurement of electricity for sale to an eligible customer by:

(1) a competitive electricity supplier; or

(2) an incumbent electricity supplier under a retail tariff approved by the commission.

(b) The term does not include transmission and distribution service.

Sec. 5. As used in this chapter, "eligible customer", with respect to an incumbent electricity supplier, means a new or existing nonresidential customer of the incumbent electricity supplier, or an aggregation of two (2) or more new or existing nonresidential customers of the incumbent electricity supplier, whose aggregate electricity demand during the most recently concluded calendar year exceeded one (1) megawatt.

Sec. 6. As used in this chapter, "incumbent electricity supplier", with respect to an eligible customer, means any of the following that is under the jurisdiction of the commission for the approval of rates and charges and whose assigned service area under IC 8-1-2.3 includes the eligible customer:

(1) A public utility (as defined in IC 8-1-2-1(a)).

(2) Any of the following that elects to become subject to this chapter in accordance with the procedure set forth in rules adopted by the commission under section 18 of this chapter:



(A) A municipally owned utility (as defined in IC 8-1-2-1(h)).

(B) A corporation organized under IC 8-1-13.

(C) A corporation organized under IC 23-17 that is an electric cooperative and that has at least one (1) member that is a corporation organized under IC 8-1-13.

Sec. 7. (a) As used in this chapter, "transmission and distribution service" means the delivery of electricity to an eligible customer by an incumbent electricity supplier over the incumbent electricity supplier's transmission and distribution systems.

(b) The term does not include electric supply service.

Sec. 8. (a) Beginning July 1, 2027, an eligible customer of an incumbent electricity supplier may elect to receive:

(1) electric supply service directly from a competitive electricity supplier; and

(2) transmission and distribution service from the incumbent electricity supplier;

as set forth in this chapter and in rules adopted by the commission under section 18 of this chapter.

(b) This chapter does not require a person described in section 2(b) of this chapter to:

(1) discontinue; or

(2) otherwise limit;

the use of a facility, project, generator, or device described in section 2(b) of this chapter.

(c) An incumbent electricity supplier may not impose:

(1) a transition fee;

(2) an exit fee; or

(3) any similar fee or charge, however denominated;

on an eligible customer that elects to receive electric supply service from a competitive electricity supplier under this chapter.

Sec. 9. (a) The commission shall, in rules adopted under section 18 of this chapter, establish the following:

(1) A system for establishing and periodically adjusting a cap on an incumbent electricity supplier's eligible customers receiving electric supply service from a competitive electricity supplier.

(2) A queue process by which eligible customers of an incumbent electricity supplier that elect to receive electric supply service from a competitive electricity supplier are authorized to begin receiving that service as the cap described in subdivision (1) allows.



1 (b) The commission's rules concerning the establishment and
 2 adjustment of the cap described in subsection (a)(1) and the queue
 3 process described in subsection (a)(2) must provide for the
 4 following:

5 (1) The cap described in subsection (a)(1) must, as of the time
 6 it is established or adjusted:

7 (A) reflect existing loads served by competitive electricity
 8 suppliers providing electric supply service to an incumbent
 9 electricity supplier's eligible customers;

10 (B) represent a percentage of the incumbent electricity
 11 supplier's total retail sales, normalized for weather, for the
 12 most recently concluded calendar year; and

13 (C) account for any incremental demand growth
 14 experienced by the incumbent electricity supplier during
 15 the most recently concluded calendar year.

16 (2) The commission shall issue a general administrative order
 17 establishing the first cap described in subsection (a)(1) not
 18 later than July 1, 2027. The first cap:

19 (A) must represent at least twenty percent (20%) of the
 20 incumbent electricity supplier's total retail sales,
 21 normalized for weather, for the most recently concluded
 22 calendar year, excluding sales to eligible customers whose
 23 demand exceeded seventy-five (75) megawatts at one (1)
 24 site; and

25 (B) remains in effect until the commission issues a
 26 subsequent general administrative order adjusting the cap.

27 (3) In each subsequent general administrative order that the
 28 commission issues to adjust the cap after the commission's
 29 first general administrative order under subdivision (2), the
 30 percentage described in subdivision (2)(A) may only be
 31 adjusted upward from the percentage in effect at the time of
 32 the adjustment.

33 (4) If an existing eligible customer of an incumbent electricity
 34 supplier elects to receive electric supply service from a
 35 competitive electricity supplier after the incumbent electricity
 36 supplier's then current cap has been met, the eligible
 37 customer shall be placed in the queue described in subdivision
 38 (6). However, an eligible customer that requires additional
 39 electric supply service for an existing facility owned or
 40 operated by the eligible customer shall be permitted to receive
 41 electric supply service from a competitive electricity supplier
 42 for:



1 (A) both the current and additional load at the existing
2 facility; and

3 (B) new load at any additional facility that is:

4 (i) constructed or acquired by the eligible customer; and

5 (ii) similar in nature to the existing facility;

6 if the customer has an ownership interest of at least fifty
7 percent (50%) in the new facility;

8 even though the sale of electric supply service from the
9 competitive electricity supplier will exceed the incumbent
10 electricity supplier's then current cap, as long as the load
11 described in clauses (A) and (B) is considered in the
12 calculation of subsequent adjustments to the incumbent
13 electricity supplier's cap.

14 (5) If a new eligible customer of an incumbent electricity
15 supplier that has not yet received electric supply service from
16 the incumbent electricity supplier seeks to receive electric
17 supply service from a competitive electricity supplier after the
18 incumbent electricity supplier's then current cap has been
19 met, the new eligible customer shall be permitted to receive
20 electric supply service from a competitive electricity supplier,
21 even though the sale of electric supply service from the
22 competitive electricity supplier will exceed the incumbent
23 electricity supplier's then current cap. However, if the new
24 eligible customer subsequently seeks to discontinue receiving
25 electric supply service from the competitive electricity
26 supplier and begin receiving electric supply service from the
27 incumbent electricity supplier, the new eligible customer must
28 provide to the incumbent electricity supplier the notice
29 required under section 10(b) of this chapter. The new eligible
30 customer must provide the notice within the time prescribed
31 in section 10(b) of this chapter unless the new eligible
32 customer elects to receive electric supply service from the
33 incumbent electricity supplier at the marginal price of
34 electricity (as defined in IC 8-1-40-6) until the expiration of
35 applicable notice period, as permitted under section 10(b) of
36 this chapter. Upon the new eligible customer's establishment
37 of electric supply service with the incumbent electricity
38 supplier, the new eligible customer's load shall be considered
39 in the calculation of subsequent adjustments to the incumbent
40 electricity supplier's cap.

41 (6) Subject to subsection (c), on an annual basis, according to
42 a schedule established by the commission in rules adopted



under section 18 of this chapter, the commission shall, for each incumbent electricity supplier, publish on the commission's website a rank ordered queue of all eligible customers of the incumbent electricity supplier that are waiting to receive electric supply service from a competitive electricity supplier. The published queue must include the estimated amount of electric supply service that will be required from a competitive electricity supplier for each eligible customer listed in the queue.

(7) If an incumbent electricity supplier's existing cap has remained at capacity for two (2) consecutive years from the date on which the cap took effect, the commission shall, on its own motion or upon the request of one (1) or more eligible customers of the incumbent electricity supplier, conduct a proceeding to review the incumbent electricity supplier's cap and may increase the cap if:

(A) one (1) or more eligible customers of the incumbent electricity supplier are in the queue described in subdivision (6) as of the expiration of the two (2) year period described in this subdivision; or

(B) there exists evidence of sustained or accelerated load growth for the incumbent electricity supplier over the course of the two (2) year period described in this subdivision.

If the commission determines that clause (A) or (B) applies, the commission shall issue a general administrative order increasing the incumbent electricity supplier's cap. The commission shall issue a general administrative order under this subdivision not later than twelve (12) months after the date on which the commission initiated a proceeding under this subdivision or the date on which the commission first received a request to initiate a proceeding under this subdivision, whichever occurred first.

(8) Every two (2) years after the commission issues a general administrative order under subdivision (7), the commission shall conduct a proceeding to review the incumbent electricity supplier's then current cap and consider whether the cap should be increased or removed based on:

(A) the total load comprising the incumbent electricity supplier's queue under subdivision (6);

(B) the projected load growth of the incumbent electricity supplier; and



1 (C) other market factors the commission considers
2 relevant.

3 (c) Upon request by an incumbent electricity supplier or an
4 eligible customer of an incumbent electricity supplier, the
5 commission shall determine whether any information required to
6 be published on the commission's website under subsection (b)(6):

- 7 (1) is confidential under IC 5-14-3-4;
8 (2) is exempt from public access and disclosure by Indiana
9 law; and
10 (3) must be treated as confidential and protected from public
11 access and disclosure by the commission.

12 Sec. 10. (a) At any time during which there is available capacity
13 under an incumbent electricity supplier's cap, an eligible customer
14 of the incumbent electricity supplier may elect to receive electric
15 supply service from a competitive electricity supplier by providing
16 advance written notice to the incumbent electricity supplier at least
17 thirty (30) days before the date on which the eligible customer
18 requests termination of electric supply service from the incumbent
19 electricity supplier.

20 (b) An eligible customer that has elected to receive electric
21 supply service from a competitive electricity supplier under
22 subsection (a) may subsequently discontinue receiving electric
23 supply service from the competitive electricity supplier and resume
24 receiving electric supply service from the incumbent electricity
25 supplier if the incumbent electricity supplier has sufficient
26 available capacity under its then current cap. An eligible customer
27 that seeks to resume electric supply service under the incumbent
28 electricity supplier's applicable tariff must provide to the
29 incumbent electricity supplier advance written notice of the eligible
30 customer's requested service date as follows:

31 (1) If the eligible customer's peak demand did not exceed
32 twenty-five (25) megawatts during the most recently
33 concluded calendar year, the eligible customer must provide
34 notice to the incumbent electricity supplier at least thirty (30)
35 days before the requested service date.

36 (2) If the eligible customer's peak demand exceeded
37 twenty-five (25) megawatts during the most recently
38 concluded calendar year, the eligible customer must provide
39 notice to the incumbent electricity supplier at least one
40 hundred eighty (180) days before the requested service date.

41 However, an eligible customer that seeks to resume electric supply
42 service under the incumbent electricity supplier's applicable tariff



1 before the expiration of the applicable notice period under this
 2 subsection shall be permitted to receive electric supply service
 3 from the incumbent electricity supplier at the marginal price of
 4 electricity (as defined in IC 8-1-40-6) until the expiration of
 5 applicable notice period.

6 Sec. 11. (a) On any customer bill issued by an incumbent
 7 electricity supplier after June 30, 2027, the incumbent electricity
 8 supplier must include a breakdown of the charges and fees that
 9 make up the total amount owed for the billing cycle, including a
 10 description of the service or cost associated with each charge or
 11 fee, if not apparent on its face. To the extent applicable, the
 12 following must be delineated as specific line items on each
 13 customer bill:

14 (1) Distribution and delivery charges.

15 (2) Transmission charges.

16 (3) Generation and supply charges, including the cost per unit
 17 consumed.

18 (4) Individual program charges, separately stated for each
 19 program for which the customer is charged, including energy
 20 efficiency programs, low income assistance programs,
 21 demand response programs, and any other programs outside
 22 the provision of basic service.

23 (5) Account or program credits.

24 (6) Taxes.

25 (7) Account management and billing fees.

26 (8) Any other applicable charges or fees.

27 (b) Before July 1, 2027, an incumbent electricity supplier shall:

28 (1) take appropriate internal operational measures to
 29 separate the incumbent electricity supplier's costs so as to
 30 accurately reflect those costs in associated charges and fees
 31 charged to customers and itemized in customer bills issued
 32 after June 30, 2027, under subsection (a);

33 (2) amend all existing approved retail tariffs to reflect these
 34 itemized charges and fees and post the tariffs, as amended, on
 35 the incumbent electricity supplier's website; and

36 (3) file the amended tariffs with the commission.

37 Upon receiving an incumbent electricity supplier's amended retail
 38 tariffs under subdivision (3), the commission shall post the
 39 amended tariffs on the commission's website. The commission may
 40 not approve any new retail tariff filed with the commission by an
 41 incumbent electricity supplier after June 30, 2027, unless the tariff
 42 includes an itemization of the charges and fees set forth in



subsection (a).

Sec. 12. (a) An incumbent electricity supplier may not:

- (1) impose any charges for electric supply service on an eligible customer receiving electric supply service from a competitive electricity supplier; or**
- (2) allocate to an eligible customer receiving electric supply service from a competitive electricity supplier costs that are incurred by the incumbent electricity supplier in providing electric supply service.**

(b) The commission shall establish, in rules adopted under section 18 of this chapter, requirements for an incumbent electricity supplier to provide to a competitive electricity supplier historical usage data for an eligible customer that seeks to receive electric supply service from the competitive electricity supplier. The commission's rules must provide for the following:

- (1) Historical usage data for the eligible customer must include:**
 - (A) at least twenty-four (24) months of customer usage or metering data; and**
 - (B) other customer information necessary to facilitate electric supply service transactions, including customer class details such as capacity and transmission allocations and loss factors.**

If the eligible customer has received electric supply service from the incumbent electricity supplier for less than twenty-four (24) months, the incumbent electricity supplier shall provide customer usage or metering data for the length of time the eligible customer has received electric supply service from the incumbent electricity supplier.

- (2) Historical usage data must include both:**
 - (A) monthly usage totals; and**
 - (B) interval usage data, to the extent available; delineated in terms of both kilowatt hour energy consumed and kilowatt demand.**
- (3) For the duration of the time that an eligible customer receives electric supply service from a competitive electricity supplier, the incumbent electricity supplier shall make available to the competitive electricity supplier such customer usage data as is necessary to facilitate invoicing by the competitive electricity supplier in a timely manner.**

(c) The requirements established by the commission under subsection (b) must include a process by which a competitive



1 electricity supplier may confirm and document an eligible
 2 customer's consent to release to the competitive electricity supplier
 3 the customer usage data described in subsection (b). The
 4 requirements must provide that an electronic signature or another
 5 similar technology may be used in confirming an eligible
 6 customer's consent.

7 (d) An eligible customer of an incumbent electricity supplier
 8 that receives electric supply service from a competitive electricity
 9 supplier shall be billed through a dual billing arrangement in
 10 which the eligible customer receives for the applicable billing cycle:

11 (1) a bill from the competitive electricity supplier for electric
 12 supply service; and

13 (2) a bill from the incumbent electricity supplier for
 14 transmission and distribution service.

15 Sec. 13. (a) The commission shall establish, in rules adopted
 16 under section 18 of this chapter, a licensing process for competitive
 17 electricity suppliers that seek to provide electric supply service to
 18 eligible customers of incumbent electricity suppliers in Indiana.
 19 The commission's rules establishing a licensing process must
 20 provide for the following:

21 (1) Before issuing a competitive electricity supplier a license
 22 to provide electric supply service, the commission must find
 23 that the competitive electricity supplier has the financial,
 24 managerial, and technical ability necessary to provide
 25 adequate electric supply service to eligible customers of an
 26 incumbent electricity supplier.

27 (2) As a condition of receiving and maintaining a license, a
 28 competitive electricity supplier must do the following:

29 (A) Pay to the commission an annual licensing fee of ten
 30 thousand dollars (\$10,000).

31 (B) Execute and maintain a surety bond, or an equivalent
 32 financial security instrument, that is:

33 (i) issued by a qualified surety, insurance company, or
 34 other financial institution authorized to do business in
 35 Indiana;

36 (ii) in the amount of not less than one million dollars
 37 (\$1,000,000); and

38 (iii) paid by the competitive electricity supplier.

39 In submitting an application for a license to the
 40 commission, the competitive electricity supplier shall
 41 include a copy of the required surety bond or financial
 42 security instrument, including a notarized verification



1 from the issuer.

2 (C) Provide electric supply service to an eligible customer
3 in accordance with a written contract, agreement, or
4 arrangement executed by the competitive electricity
5 supplier and the eligible customer.

6 (D) Pay all applicable state taxes.

7 (b) The commission must issue an order approving or denying
8 a competitive electricity supplier's application for a license not
9 later than ninety (90) days after the filing date of the application.
10 If the commission denies the application, the competitive electricity
11 supplier may resubmit the application without prejudice after
12 curing any defects in the application identified by the commission.
13 If the commission does not issue an order approving or denying a
14 competitive electricity supplier's application for a license within
15 the ninety (90) day period prescribed by this subsection, the
16 application is considered approved.

17 (c) The commission may investigate consumer complaints
18 against a competitive electricity supplier. If, after such
19 investigation, the commission determines that the competitive
20 electricity supplier has violated any provision of this chapter or of
21 any rules adopted by the commission under section 18 this chapter,
22 the commission may, after giving notice and an opportunity for
23 hearing to the competitive electricity supplier:

24 (1) revoke or suspend the competitive electricity supplier's
25 license under this section; or

26 (2) place the competitive electricity supplier on probationary
27 status, which may include:

28 (A) enhanced oversight;

29 (B) additional reporting requirements; or

30 (C) submission to the commission of a plan for corrective
31 action.

32 (d) An incumbent electricity supplier that seeks to provide
33 electric supply service outside its assigned service area under
34 IC 8-1-2.3 must do so through a functionally separate, nonutility
35 affiliate that is subject to the licensing requirements set forth in
36 this section.

37 (e) Except for the license required under this section to provide
38 competitive electric supply service to eligible customers of an
39 incumbent electricity supplier, a competitive electricity supplier is
40 not required to obtain any other license, certificate, or
41 authorization from the commission.

42 Sec. 14. In rules adopted under section 18 of this chapter, the



1 commission shall establish a procedure by which any of the
 2 following may elect to become subject to this chapter so as to
 3 enable its customers who meet the criteria set forth in section 5 of
 4 this chapter to receive electric supply service from a competitive
 5 electricity supplier:

6 (1) A municipally owned utility (as defined in IC 8-1-2-1(h)).

7 (2) A corporation organized under IC 8-1-13.

8 (3) A corporation organized under IC 23-17 that is an electric
 9 cooperative and that has at least one (1) member that is a
 10 corporation organized under IC 8-1-13.

11 Sec. 15. In any proceeding for a change in the basic rates and
 12 charges of an incumbent electricity supplier, the commission shall
 13 do the following:

14 (1) Ensure that the receipt of electric supply service by eligible
 15 customers from a competitive electricity supplier, as
 16 permitted under the incumbent electricity supplier's
 17 applicable cap, will not result in an unreasonable shifting of
 18 costs to other nonparticipating eligible customers or to other
 19 customer classes of the incumbent electricity supplier.

20 (2) Consider the avoided generation and purchased power
 21 costs inuring to the benefit of the incumbent electricity
 22 supplier's ratepayers as a result of any reduction in the
 23 incumbent electricity supplier's:

24 (A) electric supply service obligations; or

25 (B) planning reserve margin requirement with the
 26 appropriate regional transmission organization (as defined
 27 in IC 8-1-8.5-13(b));

28 as a result of eligible customers receiving electric supply
 29 service from competitive electricity suppliers.

30 Sec. 16. In any integrated resource plan filed with the
 31 commission under 170 IAC 4-7 after June 30, 2027, an incumbent
 32 electricity supplier shall not incorporate into the incumbent
 33 electricity supplier's forecasts or load projections the loads of
 34 eligible customers receiving electric supply service from a
 35 competitive electricity supplier at the time of filing.

36 Sec. 17. Beginning in 2028, the commission shall include in the
 37 annual report that the commission is required to submit under
 38 IC 8-1-1-14 before October 1 of each year the following
 39 information as of the last day of the most recently concluded state
 40 fiscal year:

41 (1) The total amount of licensing fees collected from
 42 competitive electricity suppliers during the most recently



1 concluded state fiscal year.

2 (2) The current cap for each incumbent electricity supplier.

3 (3) For each incumbent electricity supplier:

4 (A) the total number of eligible customers receiving
5 electric supply service from a competitive electricity
6 supplier; and

7 (B) the total load in megawatt hours associated with those
8 eligible customers.

9 (4) Subject to section 9(c) of this chapter, for each incumbent
10 electricity supplier, the rank ordered queue of eligible
11 customers of the incumbent electricity supplier that are
12 waiting to receive electric supply service from a competitive
13 electricity supplier, as of the last day of the most recently
14 concluded state fiscal year. The information provided under
15 this subdivision must include the estimated amount of electric
16 supply service that will be required from a competitive
17 electricity supplier for each eligible customer listed in the
18 queue.

19 Sec. 18. The commission shall adopt rules under IC 4-22-2 to
20 implement this chapter.

21 SECTION 2. An emergency is declared for this act.

